

2:00 PM

LINE 8

25-CIV-03634

PATRICK BALDWIN VS. UMANG KAJARIA, ET AL.

PATRICK BALDWIN
UMANG KAJARIA

CHRISTOPHER MADER
DAVID T. MOUTOUX

MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES AND REQUESTS FOR ADMISSION, AND REQUEST FOR SANCTIONS

TENTATIVE RULING:

The court DENIES without prejudice plaintiff and cross-defendant Patrick Baldwin's unopposed motion to compel responses to form interrogatories, and requests for admissions and sanctions failure to provide proper notice to defendants and cross-complainants Umang Kajaria and Neha Agarwal Kajaria of the hearing.

In the notice of motion, Baldwin put the date of June 23, 2026 as the hearing date. Then the clerk's office changed the hearing date to June 30, 2026. The court file shows a proof of service filed March 25, 2026, the same date of the filing but endorsed filed-documents are not returned the same day they are filed. Thus, the notice sent to defendants did not have the correct date.

There is no amended proof of service in the court file. Therefore, defendants did not receive proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1)) and, therefore, the court must deny the motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205 [“court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 9

25-CIV-09346

ROSEANNA LEUNG VS. KAMIL BROZEK, ET AL.

ROSEANNA LEUNG
KAMIL BROZEK

SEAN M. NOVAK
NAVDEEP K. SINGH

DEFENDANTS BIGPANDA, INC., KAMIL BROZEK AND TOM MELZL'S DEMURRER TO PLAINTIFF'S COMPLAINT

TENTATIVE RULING:

For the reasons stated below, Defendants BigPanda, Inc.'s (BigPanda), Kamil Brozek's, and Tom Melzl's demurrer, filed April 10, 2026, which is directed to Plaintiff Roseanna Leung's November 21, 2025 complaint, is SUSTAINED with leave to amend as to all asserted causes of action.

Background

This is a wrongful termination case involving allegations of discrimination, harassment, and retaliation. Plaintiff Roseanna Leung's complaint alleges that plaintiff is an "Asian-American female" who began working for defendant BigPanda in January, 2023. (§ 22.) In March, 2024, plaintiff began working under defendant Tom Melzl, the company's CFO, and in July, 2024, plaintiff began reporting to defendant Kamil Brozek. (§§ 23-24.) As alleged, in August, 2024, plaintiff began being subjected to "harassment and discriminatory misconduct" by defendant Brozek "relating to her sex, gender and racial background." (§ 25.) Plaintiff alleges that she witnessed defendant Brozek "engaging in unlawful harassment and discriminatory misconduct directed at other female employees." (§ 26.) Plaintiff contends she reported this "harassment and discriminatory misconduct" to defendant Melzl and to the company's Human Resources department, but with no resolution. (*Ibid.*) BigPanda, Inc. terminated Plaintiff's employment in December 2024. Plaintiff contends that the company terminated her for discriminatory reasons, and in retaliation for Plaintiff having complained about violations of the law.

The asserted claims. The complaint asserts the following six causes of action against each of defendant Big Panda, Inc., Kamil Brozek, and Tom Melzl:

1. Gender/Sex Discrimination (Gov. Code, § 12941 *et. seq.*);
 2. Retaliation in Violation of FEHA and Labor Code sections 1102.5 *et seq.*;
 3. Sexual Harassment and Failure to Take All Reasonable Steps Necessary to Prevent Discrimination (Gov. Code, § 12940(k));
 4. Wrongful Termination;
 5. Racial Discrimination (Gov. Code, § 12941 *et seq.*);
 6. Violation of Business & Professions Code section 17200 *et seq.*
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